

Act, and restricts the exercise by trustees of such powers to the extent to be presently pointed out, the Court may on the application of the trustees of the settlement, or of the tenant for life, or of any other person interested, give its decision, opinion, advice, or direction thereon (*h*).

The application should be by summons to be served [*621] upon the *tenant for life, if not the applicant. But except the judge otherwise direct, no person except the tenant for life need be served in any case (*a*).

V. Of the restrictions on the powers of trustees imposed by the Settled Land Acts.

1. **Powers under Settled Land Act cumulative.**—The Settled Land Act, 1882, vests in the tenant for life, including any other limited owner to whom under sect. 58 the powers of a tenant for life are given, large powers of dealing with the settled land (*b*), which powers cannot be released, or defeated, or avoided, either by the tenant for life or the settlor; but by sect. 56, nothing in the Act is to take away, abridge, or prejudicially affect, any power for the time being subsisting under a settlement, or by statute, or otherwise, exercisable by a tenant for life, or by trustees with his consent, or on his request, or by his direction or otherwise; and the powers given by the Act are cumulative. The effect of this enactment is not to take away from the trustees named in any settlement the powers given to them by that settlement, but to leave those powers exercisable concurrently with the powers created by the Act (*c*).

Consent of tenant for life to exercise of powers.—To obviate, however, the difficulty which might arise from the existence of concurrent powers, and in order to give full effect to the powers given by the Act to the tenant for life, the section provides that, (2) in case of conflict between the provisions of a settlement and the provisions of the Act, relative to any matter in respect whereof the tenant for

[(*h*) 45 & 46 Vict. c. 38, s. 56, (3).]

[(*a*) Settled Land Act Rules 1882,

R. R. 4, 5.]

[(*b*) As to what is included in the

term Settled Land, see sect. 2 of the Act.]

[(*c*) *Re Duke of Newcastle's Estates* 24 Ch. D. 129.]